



CHAPTER i.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Carnarvon Halifax and Wallasey. A.D. 1918.
[16th May 1918.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1918. Short title.

A.D. 1918.

S C H E D U L E.

BOROUGH OF CARNARVON.

*Carnarvon
Order.*

*Provisional Order for altering the Carnarvon Corporation
Act 1897.*

To the Mayor Aldermen and Burgesses of the Borough of
Carnarvon;—

And to all others whom it may concern.

WHEREAS the Borough of Carnarvon (hereinafter referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses acting by the council (hereinafter referred to as “the
Corporation”) are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875 and there are in
60 & 61 Vict. force in the Borough the provisions of the Carnarvon Corporation
c. cix. Act 1897 (which Act is hereinafter referred to as “the Local Act”);

And whereas by Section 32 of the Local Act the Corporation are
authorised to demand and receive for the use of their ferry across the
Menai Straits between the Borough and the County of Anglesey and
known as the Tal-y-foel ferry (hereinafter referred to as “the ferry”)
any tolls not exceeding the sums mentioned in the First Schedule to
the Local Act;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to alter or
amend the Local Act in the manner hereinafter set forth:

Now therefore We the Local Government Board in pursuance of
38 & 39 Vict. the powers given to Us by Section 303 of the Public Health Act 1875
c. 55. and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
Local Act shall be altered so that the following provisions shall take
effect that is to say:—

*Increase of
tolls for use
of ferry.*

Art. I. Notwithstanding anything contained in Section 32 of the
Local Act the Corporation may demand and receive for the use of the
ferry tolls exceeding the sums mentioned in the First Schedule to
the Local Act:

Provided that any tolls so demanded and received shall not in any
case exceed by more than fifty per centum the sum mentioned in the
said Schedule.

[8 & 9 GEO. 5.] *Local Government Board's* [Ch. i.]
Provisional Orders Confirmation (No. 1) Act, 1918.

Art. II. The provisions of this Order shall cease to be in force after the expiration of a period of five years from the date of the Act of Parliament confirming this Order unless the Local Government Board by Order extend the period which Order that Board are hereby empowered to make with or without reduction of the percentage of increase.

A.D. 1918.

*Carnarvon
Order.*

Limitation of
operation of
Order.

Art. III. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Inquiries and
expenses.

Art. IV. This Order may be cited as the Carnarvon Order 1918.

Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-third day of February One thousand nine hundred
and eighteen.

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

BOROUGH OF HALIFAX.

*Provisional Order for altering the Halifax Improvement
Act 1853 and a Confirming Act.*

*Halifax
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Halifax ; —

And to all others whom it may concern.

WHEREAS the Borough of Halifax (hereinafter referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority and there are in force in the Borough the unrepealed provisions of the Halifax Improvement Act 1853 (hereinafter referred to as "the Local Act") as altered by the Halifax Order (No. 3) 1892 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1892 (which Order and Confirming Act are hereinafter respectively referred to as "the Order of 1892" and "the Confirming Act of 1892") and by certain other Local Acts and Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

16 & 17 Vict.
c. clxvii.

55 & 56 Vict.
c. cc.

[Ch. i.] *Local Government Board's* [8 & 9 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1918.

A.D. 1918. And whereas by Section 59 of the Local Act the Corporation are
Halifax required to supply water for domestic purposes as therein mentioned
Order. at rates not exceeding the rates in the Local Act specified;

And whereas by Section 62 of the Local Act as altered by Article I. of the Order of 1892 the ordinary rates at which the Corporation are required to furnish a supply of water within the Borough for domestic purposes are specified;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act and the Confirming Act of 1892 in the manner hereinafter set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1892 so far as it relates to the Order of 1892 shall be altered so that the following provisions shall take effect that is to say:—

Power of Art. I.—(1) The Local Government Board on the application of the
Local Go- Corporation may from time to time fix by Order the rates and charges
vernment for a supply of water for domestic purposes within the Borough.
Board to fix
rates &c. for
a supply of
water for
domestic use
within the
Borough.

(2) The Corporation shall as soon as practicable after an Order is made in pursuance of subdivision (1) of this Article cause the Order to be published in two successive weeks in one or more local newspapers circulating in the Borough and the Order shall come into operation on and after the quarter day next following the date of the last of the said publications.

Alteration of Art. II. On and after the date on which any Order made in
Local Act on pursuance of subdivision (1) of Article I. of this Order comes into
operation of operation Section 59 of the Local Act shall have effect as if the rates
new water and charges fixed by the Order made as aforesaid were the rates in
rates and the Local Act specified and Section 62 of the Local Act and so much
charges. of the Confirming Act of 1892 as relates to Article I. of the Order of
1892 shall be repealed.

Inquiries and Art. III. Where the Local Government Board cause any local
expenses. inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

[8 & 9 GEO. 5.] *Local Government Board's* [Ch. i.]
Provisional Orders Confirmation (No. 1) Act, 1918.

A.D. 1918.

Art. IV. Nothing in this Order or any Order made in pursuance of subdivision (1) of Article I. of this Order shall alter vary or affect the rights and powers of the Corporation under Section 63 of the Local Act.

*Halifax
Order.*

Saving powers
of Corporation
under Section 63
of the Local Act.

Art. V. This Order may be cited as the Halifax Order 1918.

Short title.

Given under the Seal of Office of the Local Government Board
this Fifth day of March One thousand nine hundred and
eighteen.

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

BOROUGH OF WALLASEY.

*Provisional Order for altering the Wallasey Improvement
Act 1867.*

*Wallasey
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Wallasey;—

And to all others whom it may concern.

WHEREAS the Borough of Wallasey (hereinafter referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority and there are in force in the Borough the unrepealed provisions of the Wallasey Improvement Act 1867 (hereinafter referred to as "the Local Act") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

30 & 31 Vict.
c. cxxxii.

And whereas by virtue of Section 20 of the Local Act the Corporation are authorised to demand and receive for the use of their New Brighton Egremont and Seacombe Ferries across the River Mersey between the Borough and the City of Liverpool (hereinafter referred to as "the ferries") and for the conveyance of passengers animals and goods in any boat for the time being used in connection with the ferries any tolls not exceeding the sums mentioned in Schedule (C.) to the Local Act annexed;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner hereinafter set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from

38 & 39 Vict.
c. 55.

[Ch. i.]

[8 & 9 GEO. 5.]

Provisional Orders Confirmation (No. 1) Act, 1918.

A.D. 1918.

Wallasey
Order.

Increase of

Corporation may demand and receive for the use of the ferries and the

of passengers shall not in any case exceed by more than fifty per centum

Limitation of

after the expiration of a period of five years from the date of the Act

Inquiries and

inquiry to be held with reference to any of the purposes of this Order

Short title.

Art. IV. This Order may be cited as the Wallasey Order 1918.

Given under the Seal of Office of the Local Government Board

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

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